

Court No. - 48

Case :- WRIT - C No. - 15113 of 2020

Petitioner :- M/S Maruti Reclaim Rubber Industry Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Rajesh Yadav

Hon'ble Manoj Misra,J.

Hon'ble Piyush Agrawal,J.

As the impugned assessment order is of the month August, 2019, we deem it appropriate to require Sri Rajesh Yadav, who represents the respondents, to seek instructions whether any alternative remedy against the assessment order has been availed by the petitioner or not and whether there is an alternative remedy against the said order.

Instructions be obtained within a week.

Put up, as fresh, on 08th October, 2020.

Order Date :- 1.10.2020

AKShukla/-

Court No. - 5

Case :- WRIT - C No. - 15113 of 2020

Petitioner :- M/S Maruti Reclaim Rubber Industry Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Learned counsel for the respondents prays for and is granted three days further time to obtain instructions pursuant to order dated 01.10.2020.

Put up as a fresh case before the appropriate bench on 15.10.2020.

Order Date :- 8.10.2020

NLY

Court No. - 5

Case :- WRIT - C No. - 15113 of 2020

Petitioner :- M/S Maruti Reclaim Rubber Industry Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Heard learned counsel for the petitioner and Sri Rajesh Yadav, learned counsel for the respondents.

On 1.10.2020, this Court passed the following order :-

"As the impugned assessment order is of the month August, 2019, we deem it appropriate to require Sri Rajesh Yadav, who represents the respondents, to seek instructions whether any alternative remedy against the assessment order has been availed by the petitioner or not and whether there is an alternative remedy against the said order.

Instructions be obtained within a week.

Put up, as fresh, on 08th October, 2020. "

Today Sri Rajesh Yadav, learned counsel for the respondents stated on the basis of instructions received by him, that the petitioner may submit an objection to the impugned bill/assessment order dated 08.08.2019 under Para 6.5 of the U.P. Electricity Supply Code, before the competent authority within two weeks and if such an objection is filed, the competent authority shall take a final decision by speaking and reasoned order, within next three weeks after affording reasonable opportunity of hearing to the petitioner.

In view of the statement made by learned counsel for the respondents as aforementioned, we dispose of this writ petition with liberty to the petitioner to file an objection before the competent authority under Para 6.5 of the U.P. Electricity Supply Code, 2005 and in the event, the objection is filed within the specified period, the competent authority shall decide the objection and pass a final order in accordance with law, expeditiously preferably within next three weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 15.10.2020

Shalini